IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

Item No.2 - IA 85 of 2022
In
InCP(CAA)/48(AHM)2022
in
CA(CAA)/12(AHM)2022

Proceedings under Section 230-232 Co.Act,2013

IN THE MATTER OF:

DCS Infotech Pvt Ltd **.....Applicant**
Deepak Novochem Technologies Ltd

.....Respondent

Order delivered on 23/12/2022

Coram:

Dr. Deepti Mukesh, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant	: Ms. Dharmishta Raval, Adv.
For the Income Tax	: Ms. Pankti Shah, Adv.
For the RD	: Mr. Shiv Pal Singh, Asst. Director
For the OL	: Mr. Suresh Srivastava, UDC

ORDER

IA 85 of 2022

Application is filed by the Petitioner seeking to list CP(CAA) 48 of 2022 for urgent hearing as pleadings are complete and all reports of statutory authorities are on record. Learned Counsel further states that due to accounting to be completed within prescribed time-line, matter may be heard. Considering the submissions made, application is allowed and disposed of.

CP(CAA)/48(AHM)2022

Mr. Shiv Pal Singh, Assistant Director of RD states that subject to the undertaking given by the Petitioners, Department does not have objection. Mr. Srivastava from OL office states that they do not have any objection. Learned Counsel Ms. Shah for Income Tax states that there are some demands against the transferee company.

Learned Counsel Ms. Raval for Petitioner states that transferee company will continue to be in existence and proceedings can go ahead against the transferee company. Learned Counsel further states that scheme provides that tax liability will not be prejudiced and Petitioners are required to comply the same. Learned Counsel for Income Tax states that they do not have any objection subject to this statement and provisions in the scheme.

Order Reserved.

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AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

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DR. DEEPTI MUKESH
MEMBER (JUDICIAL)

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